

SENATE No. 3075

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

SENATE, May 28, 2026.

The committee on Public Safety and Homeland Security to whom was referred the petition (accompanied by bill, Senate, No. 2681) (subject to Joint Rule 12) of Dylan A. Fernandes for legislation to establish safety standards for BMX bicycle and motorcross tracks, report the accompanying bill (Senate, No. 3075).

For the committee,
John J. Cronin

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An Act establishing safety standards for motorcross tracks.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. This act shall commonly be known as "Colby's Law".

2 SECTION 2. Chapter 143 of the General Laws, as appearing in the 2024 Official Edition,
3 is hereby amended by inserting at the end thereof the following new sections:--

4 “Section 102.

5 For the purposes of this act, the following terms shall have the following meanings:-

6 “Motocross track” refers to a facility designed for off-road motorcycle racing.

7 “Operator” refers to any person, organization, or entity responsible for managing or
8 overseeing the operation of a motocross track.

9 “Participant” refers to any individual who actively engages in riding, observing, or
10 competing on the track.

Section 103. (a) All motocross tracks operating in Massachusetts shall be registered with the division.

(b) Annual permits shall be required for continued operation and shall be issued following inspection by the division to ensure compliance with safety standards established by this act.

(c) The division shall promulgate regulations to govern the implementation of sections 102 through 111, inclusive, including the development of minimum safety requirements for tracks, track employees, observers, and for riders.

Section 104. (a) Tracks shall meet minimum design and maintenance standards, including but not limited to the adoption and implementation of emergency medical response plans.

Section 105. (a) Riders and participants must wear appropriate protective equipment.

(b) Tracks must conduct safety briefings for new participants.

Section 106. All operators must maintain liability insurance to cover injuries or damages occurring on the premises.

Section 107. (a) Riders under 18 years of age must have written parental or guardian consent to participate.

(b) Special safety measures, such as speed limitations and restricted access to advanced courses, shall be implemented for youth riders.

29 Section 108. (a) The division and the office of law enforcement within the executive
30 office of energy and environmental affairs shall have the authority to enforce this act through
31 inspections, fines, or suspension of operating permits for non-compliance.

32 (b) Violations of this act may result in fines ranging from \$500 to \$5,000 depending on
33 the severity of the infraction.

34 Section 109. The division shall collaborate with the office of law enforcement within the
35 executive office of energy and environmental affairs to develop and implement a statewide
36 public awareness campaign about track safety, including educational materials and training
37 programs.

38 Section 110. Each application for a permit under Section 103 of this chapter, or for a
39 renewal thereof, shall be accompanied by a fee. The amount of such fees as well as such fees as
40 the division by regulation may prescribe, shall be determined annually by the commissioner of
41 administration under the provision of section three B of chapter seven for the filing thereof.

42 Section 111. The division shall implement and administer a grant program for the
43 purposes of supporting capital improvements at motocross tracks to improve rider safety.

44 SECTION 3. Section 23 of Chapter 21A of the Massachusetts General Laws, as so
45 appearing, is hereby amended by striking the section in its entirety and inserting in place thereof
46 the following:--

47 “Section 23. There is hereby established within the executive office of energy and
48 environmental affairs a state off-highway vehicle advisory committee. The committee shall
49 advise the secretary and the department of conservation and recreation, the department of fish

and game, the department of environmental protection, the office of environmental law enforcement, and the division on public safety on matters involving the commonwealth's regulation of off-highway vehicles, as defined in section 20 of chapter 90B, including the development and enforcement of state regulations and policies, safety and training programs and the distribution of available state funding. The committee shall consist of 19 members to be appointed by the secretary, 3 of whom shall be representatives of off-highway vehicle users, 1 of whom shall be a representative of the New England Trail Rider Association; 1 of whom shall be a representative of the Specialty Vehicle Industry Association and the Massachusetts Powersport Dealers Association; 1 of whom shall be a representative of the department of public health; 1 of whom shall be a representative of the division of public safety; 1 of whom shall be a representative of child safety advocates associated with the safe use of off-highway vehicles; 1 of whom shall be a representative of the Snowmobile Association of Massachusetts, Inc.; 2 of whom shall be representatives of a nonprofit organization that owns and manages land open to the public; 1 of whom shall be a representative of an association or organization of large private land owners; 1 of whom shall be a member of a friends group of the Massachusetts Forest and Parks Network; 1 of whom shall be representative of a motocross track owner; 1 of whom shall be representative of a motocross track rider; and 5 of whom shall be representatives of state or local law enforcement authorities. Members shall serve without compensation. Members shall be appointed for terms of 3 years. The committee shall select a chair annually by a majority vote of the members. The committee shall meet at least twice each year and shall also meet at the request of the secretary or the committee chair.

SECTION 4. Section 3500 of Chapter 10 of the Massachusetts General Laws, as so appearing, is hereby amended in paragraph (a), in line 5, after the words “there shall be credited to the fund”, by inserting the following words:--

“all of the fees and fines collected pursuant to sections 102 through 112, inclusive, of chapter 143,”;

and in the same section, in paragraph (b), in line 23, after the words “office of law enforcement”, the following words:--

“, the division of public safety”;

and in the same section, in the same paragraph, in line 34, by striking the figure “(v)”, and inserting in place thereof the following figures and words:--

“(v) grants made by the division of public safety pursuant to section 112 of chapter 143, and (vi)”;

and in the same section, in the same paragraph, in lines 37 and 38, by striking the words “and the department of environmental protection;”, by inserting in place thereof the following words:--

“the department of environmental protection, and the division of public safety;”.

SECTION 5. The secretary of energy and environmental affairs shall submit a report to the House and Senate clerks by January 1, 2027, reviewing the quality and effectiveness of public education materials and programming offered by her agencies related to off-highway vehicles, as defined in section 20 of chapter 90B.